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EXAMINER
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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

DETAILED ACTION

Claim Rejections - 35 USC § 101

35 U.S.C. 101 reads as follows:

Whoever invents or discovers any new and useful process, machine, manufacture, or composition of matter, or any new and useful improvement thereof, may obtain a patent therefor, subject to the conditions and requirements of this title.

Claims 3-5 and 8 are rejected under 35 U.S.C. 101 because the claimed invention is directed to a judicial exception (i.e., a law of nature, a natural phenomenon, or an abstract idea) without significantly more.

Claims 3-5 and 8 are each directed to a statutory category.

Claims are analyzed to determine if they are directed to a judicial exception. Claims are also directed to facilitating electronic fund transfer from a payer to a payee via a third party without divulging the identity of the payer account information to the payee. In other words, the claims describe a process of electronic fund transfer. This is similar to the kind of ‘organizing human activity’ and/or ‘fundamental economic practice’ at issue in Alice Corp. Although the claims are not drawn to the same subject matter, the abstract idea of electronic fund transfer using a third party is similar to the abstract idea of managing risk (hedging) during consumer transactions (Bilski) and mitigating settlement risk in financial transactions (Alice Corps.) Claims are therefore directed to an abstract idea.

Next, claims are analyzed to determine if there are additional limitations that individually, or as an ordered combination, ensure that the claims amount to significantly more than the abstract idea. The claims recite additional limitations of using an electronic device, broker server, and a funding source server in a network. These components are recited at a high level of generality and their broadest reasonable interpretation comprises only a processor, memory and transmitter to simply perform the generic computer functions of receiving, processing and transmitting information. Generic computers performing generic computer functions, alone, do not amount to significantly more than the abstract idea. Finally, the telecommunication network limitations are simply a field of use that is an attempt to limit the abstract idea to a particular technological environment and, so do not add significantly more. Viewing the limitations as an ordered combination does not add anything further than looking at the limitations individually. When viewed either individually, or as an ordered combination, the additional limitations do not amount to a claim as a whole that is significantly more than the abstract idea. The claims are not patent eligible.

Claim Rejections - 35 USC § 103

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102 of this title, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.
3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

Claims 3-5 and 8 are rejected under 35 U.S.C. 103 as being unpatentable over Singhal (USPAP 20020062281) in view of Scipioni (USPAP 20120296821)/Del Favero et al (USPN 8,073,775) and further in view of Davis et al (USPAP 20090070263).

Re claim 8: Singhal teaches a telecommunication system comprising:

- a) an electronic communication device connected to and configured for communication over a telecommunication network, the electronic device comprising:
 - a device communication facility permitting communication over the telecommunication network via secure session; and

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a processor configured for running a secure application for (i) authenticating or obtaining authentication information from a payer, (ii) communication via secure sessions and accessing secure databases, (iii) receiving payee identifying and real account and financial institution (iv) receiving a selection by the payer of a funding source and at least one real account associated with the payer (abstract, 0046-0049, 0069, 0075-0077, 0111-0113, 0127, fig. 9A); and

b) a brokerage server, operated by a payment broker and connected to and configured for communication over the telecommunication network, the brokerage server comprising a server communication facility permitting communication over the telecommunication network via a secure session;

a computer memory comprising a secure database; a processor configured for (i) receiving authentication information via the telecommunication network using the server communication facility, (ii) authenticating and identifying the payer based on the authentication information, (iii) receiving, via the telecommunication network, an instruction from the payer instructing that a payment be made electronically from the payer-selected funding source and at least one payer selected real account thereof to a real account and financial institution, other than the payment broker, associated with the payee (0093, 0096-0099, 0102 fig. 10)

Singhal does not explicitly teach

{a. (v)} receiving a selection by the payer of at least one real account and financial institution associated with the payee;

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{b. (iv)} computationally retrieving, from the secure database, information identifying the payer selected funding source and the at least one payer selected real account thereof and the payee and the payer selected real account of the payee at a financial institution other than the payment broker, (v) requesting, via the telecommunication network using the server communication facility, the server of the payer-selected funding source to authorize the payment to the payee, (vi) if the payment is authorized by the server of the payer-selected funding source, instructing such server, via the telecommunication network using the server communication facility, to cause the payment to be made electronically to the payee on the funding source's behalf by a third party other than the payment broker such that the identities of the payer-selected funding source and the at least one payer-selected real account of the payer at the funding source are not divulged to the payee and such real-account identifying information is not transmitted to, received or stored by the payee's depository bank or other financial institution, and (vii) instructing the server of the payer-selected funding source, via the telecommunication network using the server communication facility, to reimburse or transfer the amount of the payment to the third party from the at least one payer-selected real account of the payer at the funding source;

{c} a funding source server, operated by a payer-selected funding source and connected to and configured for communication over the telecommunication network-, the funding source server comprising:

a server communication facility permitting communication over the telecommunication network;
a computer memory comprising a secure database; and a processor configured for (i) receiving;
via the telecommunication network using the server communication facility, the request from the

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payment broker server for authorization of the payment, (ii) computationally retrieving, from a secure database, information identifying the payer and the at least one payer-selected real account of the payer at the funding source, (iii) authorizing or denying the requested payment, (iv) in response to instruction from the payment broker server following authorization, instructing, via the telecommunication network using the server communication facility, at least one third party other than the payment broker to make the payment electronically to the payee from a real account of the third party at a financial institution associated with the third party and in the third party's name and not the name of the payment broker, the funding source or the payer, thereby preventing divulgation, both to the payee's depository bank or financial institution and to the payee, of the identity of the funding source and the at least one payer-selected real account of the payer, and (v) reimbursing or transferring the amount of the payment to the third party from the at least one payer-selected real account of the payer at the funding source.

Scipioni/Del Favero teaches the concept of receiving a selection by the payer of at least one real account and financial institution associated with the payee; computationally retrieving, from the database, information identifying the payer selected funding source and the at least one payer selected real account thereof and the payee and the payer selected real account of the payee at a financial institution other than the payment broker (Scipioni: 0023, 0030, 0036-0038; Del Favero: abstract, col. 5, lines 31-46, col. 4, lines 18-28), (v) requesting, via the telecommunication network using the server communication facility, the server of the payer-selected funding source to authorize the payment to the payee (Scipioni: 0036-0038; Del Favero: col. 1, lines 65 through col. 2, line 25), (vi) if the payment is authorized by the server of the

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payer-selected funding source, instructing such server, via the telecommunication network using the server communication facility, to cause the payment to be made electronically to the payee on the funding source's behalf by a third party other than the payment broker such that the identities of the payer-selected funding source and the at least one payer-selected real account of the payer at the funding source are not divulged to the payee and such real account identifying information is not transmitted to, received or stored by the payee's depository bank or other financial institution (Scipioni: abstract, 0023, 0030, 0036-0038; Del Favero: col. 1, lines 65 through col. 2, line 25) and (vii) instructing the server of the payer-selected funding source, via the telecommunication network using the server communication facility, to reimburse or transfer the amount of the payment to the third party from the at least one payer-selected real account of the payer at the funding source (Scipioni: 0022-0023, fig. 1, ele. 120; Del Favero: col. 5, lines 56 through col. 6, line 2 & lines 34-45).

Del Favero further teaches a funding source the is configured to (i) receiving; via the telecommunication network using the server communication facility, the request from the payment broker server for authorization of the payment (fig. 1, ele. 112), (ii) computationally retrieving, from a database, information identifying the payer and the at least one payer-selected real account of the payer at the funding source (fig. 1, col. 5, lines 31-46, col. 4, lines 18-28), (iii) authorizing or denying the requested payment (col. 5, lines 31-46, col. 4, lines 18-28), (iv) in response to instruction from the payment broker server following authorization, instructing, via the telecommunication network using the server communication facility, at least one third party other than the payment broker to make the payment electronically to the payee from a real account of the third party at a financial institution associated with the third party and in the third

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party's name and not the name of the payment broker, the funding source or the payer, thereby preventing divulcation, both of the payee's depository bank or financial institution and to the payee, of the identity of the funding source and the at least one payer-selected real account of the payer (col. 6, lines 26-45).

Therefore, it would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Singhal to include these features as taught by Scipioni/Del Favero for the obvious reason of allowing the payer to designate the payee's account information by supplying sufficient information about the payee to enable the service provider to effect payment to the payee in the desired amount without divulging the payer's funding source in the process by using the transaction clearing device 120 and the EFT network (Scipioni: 0022-0023, 0036, 0038).

Singhal and/or Scipioni/Del Favero does not explicitly teach reimbursing or transferring the amount to the third party from the at least one payer selected real account of the payer at the funding source.

Davis teaches this concept at 0056, 0063, 0066. Therefore, it would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Singhal/Scipioni/Del Favero to include these features as taught by Davis for the obvious reason of guaranteeing that the third party gets paid after the transfer (0066).

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Re claims 3: Singhal and/or Scipioni/Del Favero further teach(es) wherein the brokerage server communicates with the payer via the telecommunication network using a payer electronic device (Singhal: 0038-0043; Scipioni: fig. 1, ele. 102; Del Favero: fig. 1).

Re claims 4: Singhal and/or Scipioni/Del Favero further teach(es) wherein the brokerage server communicates with the payee via the telecommunication network using a payee electronic device (Singhal: 0038-0043; Scipioni: fig. 1, ele. 104; Del Favero: fig. 1).

Re claims 5: Scipioni/Del Favero further teaches wherein the database comprises a plurality of records for payers and payees, each payer record comprising authentication information and at least one funding source and one real account associated with the payer, and each payee record comprises at least identification information associated with the payee and at least one financial institution and at least one real account associated with the payee (Scipioni: fig. 1, ele. 126; Del Favero: fig. 1).

Therefore, it would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Singhal to include these features as taught by Scipioni/Del Favero for the obvious reason of enhancing the functionality of the system (0036, 0038).

Response to Arguments

Applicant's arguments filed 5/6/2016 have been fully considered but they are not persuasive.

Re 101 rejection: Applicant argues that the claims recites technical solution to a technical problem that has arisen only recently in the context of, and due to the very nature of, mobile electronic commerce. Applicant cites the *DDR Holdings* case as relevant to the instant claims.

Examiner respectfully disagrees. Applicant admits that conventionally, a payer can contract with a third party to make a payment on the payer's behalf and in the third party's name, thereby shielding the identity of the payer's funding source and real account; for example, the payer may pay the third party by check, and the third party may mail its own check to the payee (similar to the Del Favero reference). That in itself is an admission that the claimed invention is an abstract idea similar to the kind of 'organizing human activity' and/or 'fundamental economic practice' at issue in Alice Corp. Applicant contends that the situation is different if payments are to be made electronically because the infrastructure of financial transactions is set up for auditability, which favors inclusion of chain-of-transaction details at each step. While this assertion is true, it is also true that any attempt to limit an abstract idea to a particular technological environment (in this case, electronic fund transfer (EFT) vs mailing of physical check) regardless of its advantages or disadvantages does not make the claim less abstract. For example, it is well known that EFT is a faster means for transferring funds when compared to mailing of check. However, substituting check mailing with EFT in a claim that is determined to be abstract makes no difference. It does not make the claim less abstract in spite of the advantages of using EFT or disadvantages of using check mailing. Similarly, while the auditability of EFT transaction and the inclusion of chain-of transaction is not in doubt, the method used to overcome this issue can be achieved "manually" by the organizing human activity since the claimed invention is not directed to EFT itself, rather, it is directed to using

EFT to achieve a purpose. The problem with which the applicant is concern can be similarly resolved using paper checks for mailing. The claims are not patent eligible.

Applicant used the term “secure” or “secured” in the amended claims. Examiner notes that this terms do not make any difference in terms of claim interpretation because the manner in which the database/session is “secured” is not described in the claim.

Further note *In re Venner*, 262 F.2d 91, 95, 120 USPQ 193, 194 (CCPA 1958) where providing an automatic or mechanical means to replace a manual activity which accomplished the same result is not sufficient to distinguish over the prior art, MPEP 2144.04 (III); as well as *Leapfrog Enterprises Inc. v. Fisher-Price Inc.*, 485 F.3d 1157, 1162, 82 USPQ2d 1687, 1692 (Fed. Cir. 2007) and *Muniauction, Inc. v. Thomson Corp.*, 532 F.3d 1318, 87 USPQ2d1350 (Fed. Cir. 2008), where the application of modern electronics to the prior art was deemed obvious. Thus, considering the level of ordinary skill in the art in automating similar processes, claimed invention would also have been obvious over Bilski per *Venner*, *Leapfrog*, and *Muniauction*.

Furthermore, Applicant argues the references do not teach “in response to instruction from the payment broker server following authorization, instructing, via the telecommunication network using the server communication facility, at least one third party other than the payment broker to make the payment electronically to the payee from a real account of the third party at a financial institution associated with the third party and in the third party’s name and not in the name of the payment broker, the funding source or the payer, thereby preventing divulgation,

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both to the payee's depository bank or financial institution and to the payee, of the identity of the funding source and the at least one payer-selected real account of the payer thereof to the payee".

Examiner respectfully disagrees. Del Favero at col. 6, lines 34-45 recites

"Alternatively, the physical check may be generated for the recipient by a third-party payment processor. In this scenario, the electronic check system may send a request to the third-party payment processor. Upon receipt of the request by the third-party payment processor, the third-party payment processor generates and sends the check to the recipient. In one embodiment of the invention, the check generated by the third-party payment processor transfers funds {from} an account associated with the third-party payment processor. In such cases, sufficient funds are transferred ~~from~~ {to} the recipient ~~to~~ {from} the third-party payment processor via, for example, the electronic check system."

Examiner notes that this paragraph includes typos corrected by the Examiner in order for it to make sense. The word in { } are added by Examiner. Here the electronic check system (representing the payment broker) instruct the third party processor (representing the third party) to send the payment to the recipient. Since the check is generated by the third party, and funds are withdrawn from the third party's account, it inherently means that the identity of payer's funding source and/or account number is not divulged to the payee or the payee's financial institution.

Therefore, from the above paragraph, it is clear that the funds are remitted from the third party's account without divulging the account information of the payer.

Furthermore, Davis teaches the same concept at 0066

Conclusion

THIS ACTION IS MADE FINAL. Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire **THREE MONTHS** from the mailing date of this action. In the event a first reply is filed within **TWO MONTHS** of the mailing date of this final action and the advisory action is not mailed until after the end of the **THREE-MONTH** shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than **SIX MONTHS** from the mailing date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to **OLABODE AKINTOLA** whose telephone number is (571)272-3629. The examiner can normally be reached on M-F 8:30AM -5:00PM.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Alexander Kalinowski can be reached on 571-272-6771. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/OLABODE AKINTOLA/
Primary Examiner, Art Unit 3691